

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JUSSIAH GERADEAU,

Plaintiff,

-against-

POLICE OFFICER PATRICK BURNETT, Shield No.
30205, POLICE OFFICER DANIEL PALMINTERI,
Shield No. 21071, and POLICE OFFICERS JOHN DOE 1-
10,

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates KINGS
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 16, 2020

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN & ASSOCIATES PLLC.
Attorney for Plaintiff
30 Broad Street, Suite 702
New York, New York 10004
(646)-524-6026

TO: POLICE OFFICER PATRICK BURNETT, Shield No. 30205, 79th Precinct ,
263 Tompkins Ave, Brooklyn, NY 11216

POLICE OFFICER DANIEL PALMINTERI, Shield No. 21071, 79th Precinct ,
263 Tompkins Ave, Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

JUSSIAH GERADEAU,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER PATRICK BURNETT, Shield No.
30205, POLICE OFFICER DANIEL PALMINTERI,
Shield No. 21071, and POLICE OFFICERS JOHN DOE 1-
10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff, JUSSIAH GERADEAU, by his attorneys, Caitlin Robin & Associates, PLLC,
as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On September 18, 2019, at approximately 4:00 p.m., plaintiff JUSSIAH GERADEAU was subjected to an unlawful stop, frisk, search, detention, and false imprisonment, while lawfully present in the vicinity of 239 Jefferson Avenue, in Brooklyn, New York. In addition, Plaintiff was subjected to excessive force when the Defendants punched and twisted Plaintiff's arm, causing him to seek treatment at Brooklyn Hospital for his injuries. Plaintiff spent approximately 30 hours unlawfully in police custody. Thereafter, the defendant police officers denied plaintiff the right to a fair trial by forwarding false information to the District Attorney's Office. All charges against Plaintiff were dismissed on or about January 16, 2020. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, unlawfully arrested, and denied the plaintiff the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff JUSSIAH GERADEAU is a resident of the State of New York.

3. POLICE OFFICER PATRICK BURNETT, Shield No. 30205, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident POLICE OFFICER PATRICK BURNETT, Shield No. 30205, was assigned to the 79th Precinct.

5. POLICE OFFICER PATRICK BURNETT, Shield No. 30205, is being sued in his individual and official capacities.

6. POLICE OFFICER DANIEL PALMINTERI, Shield No. 21071, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject incident POLICE OFFICER DANIEL PALMINTERI, Shield No. 21071, was assigned to the 79th Precinct.

8. POLICE OFFICER DANIEL PALMINTERI, Shield No. 21071, is being sued in his individual and official capacities.

9. POLICE OFFICER JOHN DOE 1-10, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained, managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On September 18, 2019, at approximately 4:00 p.m., Plaintiff was lawfully standing in the yard of his grandmother's house, Diane Lewis, located at 239 Jefferson Avenue, in Kings County, New York.

15. The defendant police officers unlawfully approached Plaintiff without reasonable suspicion or probable cause.

16. The Defendant Officers entered the Plaintiff's grandmother's property without permission or authority.

17. The Defendant Police Officers said "Where's the weed?" to Plaintiff.

18. Plaintiff replied by saying, "What? I don't have any weed."

19. Defendant Officer then grabbed Plaintiff's arm, and threw him up against the wall in the vestibule of his grandmother's home.

20. Defendant Officer then said, "I don't care, you are going to jail."

21. Plaintiff's grandmother, Ms. Lewis, was standing inside the screen door of her home, watching, and said, "He did nothing wrong, what are you doing?"

22. Another Defendant Officer then put his foot in front of the door to block Ms. Lewis from coming outside, while they were assaulting the Plaintiff.

23. A defendant officer then punched Plaintiff in the face, and threw him to the floor, causing physical injury to Plaintiff's shoulder, right side of his face, and hands.

24. The defendant police officers unlawfully handcuffed Plaintiff.

25. At no time prior to being stopped by the officers did Plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe he had committed or was committing a crime.

26. The Defendant Officers searched Plaintiff and found no contraband or anything illegal on him.

27. At no point in time did Plaintiff resist arrest in any way.

28. Defendant Officers placed Plaintiff under arrest for no legal reason.

29. Defendants then drove Plaintiff to the 79th Precinct, where Plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.

30. While at the 79th Precinct, the Plaintiff continually asked for medical treatment, but the Defendant Officers refused to provide medical treatment or take him to the hospital.

31. Thereafter Plaintiff was transferred to Kings County Central Booking.

32. The Defendant Officers falsely stated to the Kings County District Attorney's Office that Plaintiff had committed a crime despite knowing that they lacked a legal and factual basis to allege that Plaintiff committed any crime.

33. On September 19, 2019, after approximately 24 hours unlawfully in police custody, Plaintiff was arraigned in Kings County Criminal Court and charged with crimes that the defendant officers had no basis to allege that he committed, and released on his own recognizance.

34. When Plaintiff was released from central booking, he immediately went to Brooklyn Hospital to be treated for his injuries.

35. At Brooklyn Hospital he was diagnosed with injuries to his left shoulder, bilateral hand pain, and swelling to his jaw.

36. Plaintiff missed three days of school as a result of the arrest.

37. All charges against Plaintiff were dismissed and sealed against Plaintiff on January 16, 2020.

38. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, denial of fair trial, and excessive force used against Plaintiff.

39. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, and excessive force against plaintiff by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

40. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The individually named police officer defendants while acting in concert and within the scope of their authority, caused Plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to denial of his due

process rights in violation of Plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

42. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

44. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

48. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

50. The conduct of defendants in stopping, frisking, and searching, Plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

51. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the United States Constitution

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

55. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The illegal approach, pursuit, stop and search inside Plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

57. Defendants lacked probable cause to search Plaintiff.

58. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights**Denial of Right to Fair Trial/Due Process**

62. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

64. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

65. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

66. In withholding/creating false evidence against Plaintiff JUSSIAH GERADEAU, and in providing/withholding information with respect thereto, defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

67. As a result of the foregoing, Plaintiff JUSSIAH GERADEAU, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Excessive Force**

71. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The use of excessive force by defendants by, amongst other things, by assaulting Plaintiff, punching his face, pushing Plaintiff's face into the wall of the vestibule, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

73. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

74. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, JUSSIAH GERADEAU. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

76. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

77. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

81. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

83. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

84. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

86. Defendants failed to intervene to prevent the unlawful conduct described herein.

87. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

88. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

92. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution.

94. Defendants commenced and continued a criminal proceeding against Plaintiff.

95. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

96. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

97. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

98. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution.

99. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

100. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. Defendants despite being aware that Plaintiff was suffering through severe arm pain while in their custody and required medication and additional treatment from medical professionals, they delayed Plaintiff's medical treatment and refused to administer and properly procure, immediate and adequate medical attention.

103. The delay in medical treatment to Plaintiff's injuries resulted in permanent additional ongoing anxiety attacks suffered by Plaintiff that would have been prevented if Plaintiff received treatment in a timely manner.

104. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

107. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

108. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff JUSSIAH GERADEAU demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 17, 2020

By: 
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN & ASSOCIATES PLLC.
Attorney for Plaintiff

30 Broad Street, Suite 702
New York, New York 10004
(646)-524-6026

TO: POLICE OFFICER PATRICK BURNETT, Shield No. 30205, 79th Precinct , 263 Tompkins Ave,
Brooklyn, NY 11216

POLICE OFFICER DANIEL PALMINTERI, Shield No. 21071, 79th Precinct , 263 Tompkins Ave,
Brooklyn, NY 11216

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **CAITLIN ROBIN & ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 17, 2020



CAITLIN ROBIN, ESQ.